

Smt. Kudusia Begum v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 7 July 2022 · WRIT - C No. 15296 of 2022 · **Writ disposed; objection under clause 6.5 directed; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking to quash a tehsildar's electricity recovery citation is disposed of without opinion on merits. The consumer may file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the designated licensee officer within four weeks; if filed, it is to be decided within the next four weeks after hearing. Coercive recovery is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Kudusia Begum challenged a recovery citation dated 20 April 2022 issued by the Tehsildar, Tehsil Karchhana, District Prayagraj, recording electricity dues of Rs. 3,19,001 plus other charges. She sought certiorari quashing the citation and mandamus restraining coercive recovery. Counsel for the power distribution corporation (respondents 2, 3 and 4) stated on instructions that she could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery citation relegated to clause 6.5 objection

HOLDING

Without expressing any opinion on merits, a writ against a tehsildar's electricity recovery citation is disposed of with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the designated licensee officer within four weeks; if so filed, the objection shall be decided in accordance with law within the next four weeks after hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined to examine the recovery citation on merits and relegated the consumer to a clause 6.5 objection as the appropriate remedy in place of the writ. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed electricity demand underlying the tehsildar's recovery citation of Rs. 3,19,001 was sent to the statutory clause 6.5 objection, to be decided in accordance with law after hearing. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement that an objection to the demand would be decided time-bound, the Court treated a Para 6.5 representation before respondent No. 3 as the appropriate remedy and granted a short coercive-action stay pending that process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 20 APRIL 2022 AND THE UNDERLYING ELECTRICITY DEMAND

The Court expressly declined to express any opinion on the merits and only granted liberty to object under clause 6.5. ¶ 1